

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/07/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0004467

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M.GIL

PLAINTIFF: SARA CHEZKIAN

vs.

DEFENDANT: DANIEL L. DAMATO

NATURE OF PROCEEDINGS: MOTION - SET ASIDE/VACATE JUDGMENT

RULING

This matter was called as regularly scheduled in this department on June 26, 2026. Plaintiff Sara Chezkian appeared for argument. Marin County Superior Court Local Rules, Rule 2.10(A), (B), provides that if a party wants to present oral argument, the party must contact the Court at (415) 444 7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested. The court did not receive notification that Plaintiff Chezkian was going to appear for argument.

Ms. Chezkian patiently waited for approximately 4 hours in court for her case to be called, and the two motions she had on calendar for hearing. Brief argument was heard regarding the motion re: relief of counsel that was filed by her lawyer. As for the second motion regarding her request to set aside the judgment, the court did not confirm whether Plaintiff notified Defendant Daniel Damato that she was going to appear for argument.

The court entered an order on June 29, 2026, continuing hearing on the second motion to August 7, 2026, at 1:30 pm. to provide the defendant with an opportunity to be heard regarding the tentative ruling issued on June 25, 2026, which is repeated here for the convenience of the parties:

Motion to Set Aside and Vacate Judgment

Plaintiff Chezkian prevailed after a trial on the merits on February 24, 2026, with this Court issued a Judgment After Trial for \$267,400.00, and awarded pretrial interest of \$72,732.80 for a final judgment amount of \$340,132.80. Plaintiff filed a post-trial Motion for Recovery of Attorney's Fees and costs on March 2, 2026. The court granted the request, awarding plaintiff \$116,206.03 as recoverable litigation fees and costs.

The court minutes indicate the trial began at 10 am in department L on February 24, 2026, and concluded at 3 pm. A total of 3 witnesses were called. At the conclusion of trial, the plaintiff presented a demand for damages and the court awarded \$267,000.

Plaintiff argues in her motion to set aside the judgment that Mr. Graves attempted to coerce Plaintiff into accepting a settlement of approximately \$140,000 on the eve of trial. On this record, the issue of what occurred on the eve of trial is moot because the Plaintiff was awarded \$267,000 after a full presentation of evidence by both parties.

The court awarded damages after a presentation of evidence, and awarded the Plaintiff \$267,000. After the trial, the court also awarded pre-trial interest of \$72,732.80, and trial cost recovery of \$116,206.03. The total awarded to Plaintiff is \$455,938.

Plaintiff's request to set aside the judgment is DENIED.

The parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) **Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court.** In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/07/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005389

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M.GIL

PLAINTIFF: NOVATO HEALTHCARE
CENTER, LLC

vs.

DEFENDANT: CALIFORNIA
DEPARTMENT OF PUBLIC HEALTH, ET AL

NATURE OF PROCEEDINGS: MOTION - SUMMARY JUDGMENT

RULING

Plaintiff Novato Healthcare Center, LLC's ("Plaintiff") motion for summary judgment is GRANTED. (Code Civ. Proc., § 437c, subd. (c).)

I. BACKGROUND

This action is based on a skilled nursing facility's challenge to a citation by the California Department of Public Health ("CDPH") arising out of the death of a resident. According to the complaint, Plaintiff runs a licensed skilled nursing facility in Novato. (Complaint, ¶ 1.) On November 20, 2024, CDPH issued Plaintiff a Class "AA" citation¹ stating that the facility's violations of applicable regulations resulted in a 71-year-old male patient being permitted to leave the facility unsupervised on December 19, 2019. (Plaintiff's Separate Statement of Undisputed Material Facts ("UMF") No. 7; Stock Dec., Ex. A.) According to the citation, the patient, referred to as Resident 23, wandered onto a railroad track during this outing and was fatally struck by a train. (Stock Dec., Ex. A.)

Health and Safety Code, section 1428 authorizes an action by a cited entity to "adjudicate the validity of the citation[.]" (Health & Saf. Code, § 1428, subd. (b).) In that action, the court "may affirm, modify, or dismiss the citation, the level of the citation, or the amount of the proposed assessment of the civil penalty." (*Ibid.*) Plaintiff filed this action against CDPH to challenge the November 2024 citation. Plaintiff's complaint alleges in part that regardless of whether the

¹ CDPH citations are classified according to the nature of the violation. (Health & Saf. Code, § 1424.) Class "A" violations are violations presenting either an "imminent danger" or a "substantial probability" that death or serious harm will befall a resident. (Health & Saf. Code, § 1424, subd. (d)(1).) Class "AA" violations are Class "A" violations that were a substantial factor in causing the death of a resident of a long-term health care facility. (Health & Saf. Code, § 1424, subd. (c)(1).)